

ANNEX.

I.—DOCUMENTS AND PAPERS TRANSMITTED BY THE ORGANS OF THE LEAGUE OF NATIONS :

1.—Report on the question of the treatment of Polish nationals and other persons of Polish origin or speech at Danzig, presented to the Council of the League of Nations by the representative of Great Britain (Document C. 388. 1931. I) (*in French and English*).

2.—Letter from the High Commissioner of the League of Nations at Danzig to the Secretary-General of the League of Nations (March 31st, 1931) (*in French, with English translation*) and the following appendices :

Covering letter from the Polish diplomatic representative at Danzig to the High Commissioner (March 26th, 1931).

Polish memorandum (March 26th, 1931).

Covering letter from the President of the Senate of the Free City to the High Commissioner (March 26th, 1931).

Danzig memorandum (March 26th, 1931).

3.—Extract from the minutes of the 63rd Session of the Council of the League of Nations, 5th meeting, May 22nd, 1931.

4.—Extract (No. 58) from *Official Journal* of the League of Nations, December Number, 1930 : Constitution of the Free City of Danzig.

5.—A volume containing the authentic Polish text and the revised and corrected French text of the Memorials submitted to the High Commissioner of the League of Nations at Danzig on the prejudicial treatment of Polish nationals and other persons of Polish origin or speech at Danzig (Danzig, 1931). (Cf. Appendices to No. 2.)

The Court had also before it the Decision concerning Danzig approved by the Supreme Council on July 11th, 1920 (*Zbiór dokumentów urzędowych dotyczących stosunku Wolnego Miasta Gdanska do Rzeczypospolitej Polskiej*—Collection of official documents concerning the relations between the Free City of Danzig and the Polish Republic), as also the report submitted to the Council of the League of Nations on July 7th, 1923, by M. Quiñones de León (League of Nations Document C. 468. 1923).

II.—DOCUMENTS AND PAPERS SUBMITTED ON BEHALF OF THE POLISH GOVERNMENT :

A.—During the written procedure :

1.—Letter, dated October 20th, 1920, from the President of the Conference of Ambassadors to the Secretary-General of the League of Nations.

2.—Extract from the minutes of the 10th Session of the Council held at Brussels from October 20th. to 28th, 1920 (Annex 122 b). (Note concerning the draft Constitution of the Free City of Danzig from the point of view of the Treaty of Versailles.)

3.—Letter, dated November 5th, 1920, from the Danzig delegation to the President of the Conference of Ambassadors.

4.—Letter, dated November 6th, 1920, from the President of the Conference of Ambassadors to the President of the Danzig delegation.

5.—Law of March 31st, 1925, concerning the official language of the courts. Public Prosecutor's Department and notaries in the districts of the Courts of Appeal of Poznan and Torun.

B.—During the oral procedure :

- 1.—The Polish-Danzig Agreement of October 24th, 1921, known as the Warsaw Agreement (*Polish and German texts*).
- 2.—Collection containing the following documents, in French :
 - (a) Point 13 of President Wilson's speech to Congress at Washington on January 8th, 1918.
 - (b) Note, dated June 16th, 1919, from the President of the Peace Conference to the President of the German delegation.
 - (c) Extract from the Treaty of Peace signed at Versailles on June 28th, 1919 (Art. 100-108).
 - (d) Resolution and Memorandum adopted by the Council of the League of Nations on February 13th, 1920.
 - (e) Letter, dated October 20th, 1920, from the President of the Conference of Ambassadors to the Secretary-General of the League of Nations.
 - (f) Convention between Poland and the Free City of Danzig, concluded at Paris on November 9th, 1920.
 - (g) Report submitted to the Council of the League of Nations by H.E. Viscount Ishii on November 17th, 1920.
 - (h) Resolution adopted by the Council of the League of Nations on November 17th, 1920.
 - (i) Extract from the Minutes of the 10th Session of the Council held at Brussels from October 20th to 28th, 1920; note concerning the draft Constitution of the Free City of Danzig from the point of view of the Treaty of Versailles.
 - (j) Constitution of the Free City of Danzig.
 - (k) Extract from the Treaty of Warsaw, concluded between Poland and Czechoslovakia on April 23rd, 1925 (Art. 11).
 - (l) Letter, dated March 8th, 1922, from the President of the Senate of the Free City of Danzig to the Commission for the Allocation of State property.
 - (m) Extract from the Treaty between the Principal Allied and Associated Powers and Poland, signed on June 28th, 1919 (Minorities Treaty).
 - (n) Letter, dated June 24th, 1919, from M. Clemenceau, President of the Peace Conference, to M. Paderewski, Prime Minister of the Polish Republic.
 - (o) Letter, dated November 5th, 1920, from the Danzig delegation to the Conference of Ambassadors.
 - (p) Letter, dated November 6th, 1920, from the President of the Conference of Ambassadors to the President of the Danzig delegation.
 - (q) Extract from the law of March 31st, 1925, on the official language of the courts, of the Public Prosecutor's Department and of notaries in the districts of the Appeal Courts of Poznan and Torun.
 - (r) Decision of the High Commissioner of the League of Nations, dated December 17th, 1921.
 - (s) Report submitted to the Council of the League of Nations by M. Adatci on May 17th, 1922.
 - (t) Extract from the report of M. Quiñones de León and from the Resolution adopted by the Council on September 1st, 1923.
 - (u) Protocol drawn up at Warsaw on February 8th, 1930, regarding the increase of unemployment in the Danzig labour market.
 - (v) Decree of the Reich Minister of Labour, dated January 31st, 1931, concerning emergency relief for unemployed persons of Danzig nationality.
 - (w) Letter, dated September 18th, 1931, from the Senate of the Free City of Danzig to the Diplomatic Representative of the Polish Republic at Danzig.
 - (x) Request, dated May 9th, 1931, from the Government of the Free City of Danzig to the High Commissioner of the League of Nations at Danzig.

3.—Letter from the Secretary-General of the Conference of Ambassadors to the Polish delegation (October 16th, 1920).

4.—Translation of Articles 229, 234 and 241 of the Warsaw Agreement (October 24th, 1921).

5.—Extract from the statistics of primary public and private schools, etc. (1930-1931).

6.—Extract from the statistics of high schools, etc. (1930-1931).

7.—Extracts from the *Gesetzblatt für die Freie Stadt Danzig*:

I.—*Gesetz über den Gebrauch der polnischen Sprache bei der Rechtspflege* (II X 22).

II.—*Gesetz zur Verlängerung der Geltungsdauer über den Gebrauch der polnischen Sprache bei der Rechtspflege vom 11. Oktober 1922* (5 IX 23).

III.—*Gesetz betreffend den Unterricht der polnischen Minderheit* (20 XII 21).

III.—DOCUMENTS AND PAPERS FILED ON BEHALF OF THE SENATE OF THE FREE CITY OF DANZIG:

A.—During the written procedure:

1.—Official documents concerning the Convention of November 9th, 1920, between the Free City of Danzig and the Polish Republic; 1 vol., containing *inter alia*:

- (a) Articles 100 to 108 of the Treaty of Versailles.
- (b) Text of the draft convention determining the mutual relations between the Free City of Danzig and the Polish Republic, known as the first Polish draft.
- (c) Draft convention between the Free City of Danzig and the Polish Republic, in conformity with Article 104 of the Treaty of Versailles of June 28th, 1919, known as the Danzig draft.
- (d) Letter, dated Paris, September 20th, 1920, from the Polish delegation to the President of the Peace Conference at Paris, with a draft treaty.
- (e) Draft convention determining the mutual relations between the Free City of Danzig and the Polish Republic, known as the second Polish draft.
- (f) Note from the Danzig delegation to the Conference of Ambassadors concerning the sovereignty of the Free City of Danzig (October 8th, 1920).
- (g) Letter from the Conference of Ambassadors to the Danzig delegation with a draft treaty (October 16th, 1920) and the draft of a convention between the Free City of Danzig and Poland, known as the draft of October 16th, 1920.
- (h) Observations by the Danzig delegation on the draft treaty of the Conference of Ambassadors (October 18th, 1920).
- (i) Letter from the Conference of Ambassadors to the Danzig delegation, together with a new draft of the Danzig-Polish Treaty (Paris, October 20th, 1920), and the draft of a convention between the Free City and Poland, dated October 19th, 1920.
- (j) Letter from the Peace Conference to the Danzig delegation concerning amendments to the Danzig-Polish draft treaty (Paris, October 22nd, 1920).
- (k) Letter from the Danzig delegation to the Conference of Ambassadors concerning the signature of the Danzig-Polish Convention (October 22nd, 1920).

- (l) Letter from the Danzig delegation to the Conference of Ambassadors concerning the refusal to enter into further negotiations on the text of the Danzig-Polish Convention (October 24th, 1920).
 - (m) Letter from the Conference of Ambassadors to the Danzig delegation on the amendments to the Danzig-Polish draft treaty (Paris, October 28th, 1920).
 - (n) Final text of the Treaty between the Free City of Danzig and Poland, signed at Paris on November 9th, 1920, in execution of Article 104 of the Treaty of Versailles.
- 2.—Danzig-Polish Agreement of October 24th, 1921, known as the Warsaw Agreement; 1 vol. (*Polish and German texts*).
- 3.—Collection of treaties, agreements and arrangements between the Free City of Danzig and the Polish Republic (1920-1927); 2 vol. (*German and Polish texts*).
- 4.—Decisions of the High Commissioner (1921-1927) (*English and German, or French and German texts*).
- 5.—Collection of documents, containing the following texts in French and in English:
- 1. Application of the Polish Government of September 30th, 1930, for a decision in accordance with Article 39 of the Danzig-Polish Treaty of Paris of November 9th, 1920, regarding the unfavourable treatment of Polish nationals and other persons of Polish origin or Polish speech in the Territory of the Free City of Danzig.
 - 2. Reply of the Government of the Free City of Danzig of December 3rd, 1930, to the Polish claim of September 30th, 1930, with regard to Article 33 of the Treaty of Paris of November 9th, 1920.
 - 3. Reply of the Polish Government of January 29th, 1931, regarding the alleged unfavourable treatment of Polish nationals and other persons of Polish origin or Polish speech in the Territory of the Free City of Danzig.
 - 4. Second Reply of the Government of the Free City of Danzig of March 25th, 1931, regarding *general* legal arguments to the Minorities problem, and in particular to Article 33 of the Treaty of Paris of November 9th, 1920.
 - 5. Second Reply of the Government of the Free City of Danzig of May 5th, 1931, regarding *special* arguments to the Minorities problem, in particular to Article 33 of the Treaty of Paris of November 9th, 1920.
 - 6. Memorandum by the Government of the Free City of Danzig of March 26th, 1931, concerning the legal question.
 - 7. Memorandum by the Polish Government of March 26th, 1931, concerning the legal question, with a letter of the High Commissioner of March 31st, 1931, to the Secretary-General of the League of Nations in order to obtain an advisory opinion from the Permanent Court of International Justice.
- B.—During the oral procedure the attention of the Court was drawn to the following documents:
- 1. Danzig law, dated October 11th, 1922, concerning the use of the Polish language in the courts.
 - 2. Danzig law, dated September 5th, 1923, in regard to the prolongation of the law of October 11th, 1922, concerning the use of the Polish language.
 - 3. Danzig law, dated December 20th, 1921, concerning the education of the Polish minority.